

New and emergent torts

New and emergent torts or doubtful torts are the following:-

1. Infringement of privacy or invasion of privacy
2. Breach of confidence
3. Abuse of governmental powers
4. Infringement of a status
5. Innominate Torts
6. Eurotorts

1. **Infringement of privacy or Invasion of privacy:**— Some form of interference with another's seclusion of him, his family or his property from the public is known as the tort of infringement of privacy. American courts have recognized it by the overwhelming majority. This tort is not adequate to deal with modern means of electronic and optical surveillance.
2. **Breach of confidence:**— It is now recognized as a distinct tort. It is committed when the person having confidential information make use or discloses to others the information in question to the detriment of the plaintiff. This is a judge-made law and has borrowing features from contracts, property, equity bailment and torts.
3. **Abuse of Governmental Powers:-** This tort is committed when damage is caused to the plaintiff

by the malicious exercise of power by a public servant. This is the view of Salmond and Heuston. English law deals with it under the heads of 'misfeasance in public life'. A citizen aggrieved by the abuse of governmental power may file suit and recover damages.

4. **Infringement of a status:**— Courts have provided remedies of damages or injunction or declaratory judgment for improper expulsion from a trade union etc. if it being in violation of principles of justice and fairness. The tort of infringement of a status has been recognized as a statutory tort.
5. **Innominate Torts:-** In America this is called "prima facie tort doctrine". Intentional infliction of temporal damage will give rise to a prima facie cause of action unless some justification is given by the defendant. Such cause of action is referred as "innominate torts" in England. To get relief, the plaintiff has not only to prove bad intention or malice but also that the act in question was unlawful.
6. **Eurotorts:**— Torts which have been recognized under European treaties are known as Eurotorts